

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of JILL COLEMAN License No. 001636 Respondent	CASE NO. 19-0147 SETTLEMENT AGREEMENT AND FINAL ORDER
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Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 Iowa Administrative Code (IAC) chapter 12, the Iowa Board of Behavioral Science (“Board”) and Jill Coleman (“Respondent”) enter into the following Settlement Agreement and Final Order (“Order”) to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on March 10, 2022.
2. The Board has jurisdiction over Respondent and the subject matter of this proceeding.
3. The factual circumstances contained in the Notice of Hearing and Statement of Charges are hereby incorporated into this Order. Respondent acknowledges that the allegations contained in the factual circumstances in the Notice of Hearing and Statement of Charges, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order. Respondent further acknowledges that any confidential factual circumstances contained in the Notice of Hearing and Statement of Charges, by virtue of their incorporation into this Order, are now public and are available for inspection and copying in accordance with Iowa Code chapters 22 and 272C.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State’s counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent agrees to **VOLUNTARILY SURRENDER** her mental health counselor license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5). This voluntary surrender shall be permanent; Respondent is not eligible to apply for reinstatement of her license in the future.

13. Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor in the State of Iowa, or to otherwise hold herself out to the public as a licensed mental health counselor in the State of Iowa, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.

14. Respondent shall immediately return her mental health counselor license to the Board.

15. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC chapters 13 and 33.

5-31-22

Date

Jill Coleman

JILL COLEMAN
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on June 9, 2022.

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Behavioral Science